

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Suppliers must comply with timeframes!



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Ask your partner:

- When signing a software license, how do you make sure the suppliers are going to deliver their part on time? Explain.
- What kind of consequences should be necessary for a supplier to be attached to the timeframes proposed in a contract?

Can Do Statements:

- I can talk about the importance of holding suppliers to a timeframe.
- I can discuss performance warranties to prevent suppliers from walking away.
- I can talk about possible consequences for suppliers when not fulfilling the established requirements.





Let's Explore!

Tom is telling his friend Lucy about some issues he's been having regarding the compliance* from a software supplier with some agreements.

* A "compliance" means to act according to certain accepted standards established in a contract.



Instructions: Read the text below.

Lucy: So, tell me, Tom. How's everything going with your new business?

Tom: Not as good as planned, I'm afraid I've been having real issues with my software supplier.

Lucy: How come?

Tom: It's been hard to make him comply with some things. Can suppliers be held accountable for timeframes?

Lucy: Of course. A defined project plan with key milestones has to be included for the supplier to meet. It is really important to clarify the consequences that may be in case the supplier doesn't comply with their part on time. The excuse that can be given by them is that timeframes are dependent on the customer doing their part, which results in the supplier trying to find an 'out' for delays caused by the customer. As it happens a lot, the best thing you can do is to have a docket devoted to the tasks that may be performed by either you or the supplier.

Tom: Interesting. Yet I have done everything from my part. What else should be done?

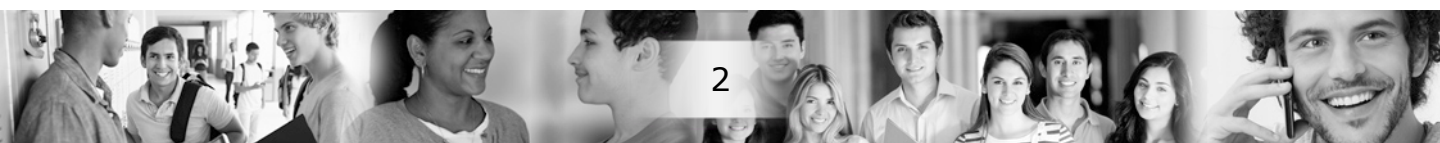
Lucy: A performance warranty must be included. The supplier should understand his obligations, so he doesn't just walk away from the project. This warranty offers a practical remedy in circumstances where a remedy may be otherwise unavailable. You can also obtain a right to perform acceptance testing. Whether they like it or not, suppliers must agree to these terms.

Tom: Are there any consequences for the supplier if he doesn't comply with any of these?

Lucy: Well, liquidated damages can be payables if milestones are not met; likewise, the supplier can also be sued for damages.

Tom: Should refunds be made if the solution does not work as planned?

Lucy: Sure, you can always obtain a refund of the fees paid.





Let's Practice!

What can be done about these suppliers?

Instructions: Proofread the sentences. Correct the mistakes.

1. Can suppliers be told a timeframe?
2. Must you is guaranteed a performance warranty?
3. Should key milestones be including for the supplier to meet?
4. Could a refund be make if the supplier doesn't meet the date?
5. If a supplier doesn't stick to a timeframe, can he is sued?



Let's Practice!

These are some possible solutions that can be implemented in case the service provider wants to walk away from his responsibilities.

Instructions: Match column A with Column B.

COLUMN A

1. Delays can't be caused by any of the
2. The consequences of not meeting the key milestones
3. Liquidated damages can be
4. Excuses can't be accepted from
5. A performance acceptance testing could be
6. A performance warranty should

COLUMN A

- a. paid if milestones aren't met.
- b. be included to have clear each parts' responsibilities.
- c. obtained as a right.
- d. must be included in the plan given to the supplier.
- e. the supplier in case they don't comply.
- f. parties for a project to comply a timeframe.



Extension Activity

Let's know more about consequences.

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for information about consequences of not complying in a project you are interested in.
- Describe how strong each of the possible consequences is.
- Write 2 paragraphs about those consequences.
- Read them to a classmate.

Self-Assessment

Yes No

- | | | |
|--|-----------------------|-----------------------|
| 1. I look for specific information on the internet. | ☐ | ☐ |
| 2. I describe the different consequences. | ☐ | ☐ |
| 3. I write paragraphs about the consequences of not complying. | ☐ | ☐ |
| 4. I share my text with my classmates. | ☐ | ☐ |



Target Words

- **payable** (noun): a debt owed to a creditor.
e.g. Well, liquidated damages can be payables if milestones are not met.
- **performance warranty** (noun): an agreement between two parties for one of them to perform all of its obligations under the contract.
e.g. A performance warranty must be included.
- **timeframe** (noun): an interval of time within something planned or expected to happen.
e.g. The excuse that can be given by them is that timeframes are dependent on the customer doing their part, which results in the supplier trying to find an 'out' for delays caused by the customer.
- **comply** (verb): to act in correspondence with something stipulated in a contract or law.
e.g. It's been hard to make him comply with some things.
- **docket** (noun): schedule; agenda.
e.g. As it happens a lot, the best thing you can do is to have a docket devoted to the tasks that may be performed by either you or the supplier.
- **liquidated damages** (noun): amount of money (agreed through a contract) any party obtains in case of aggravation.
e.g. Well, liquidated damages can be payables if milestones are not met.



Learning Points

Passive Questions with Modal verbs

Use questions in the **passive voice** using **modal verbs** to request information about what the object can do in terms of possibility, advisability, and necessity, among others.

The main difference between a regular question with a modal verb and one using the **passive voice**, however, is that the modal verb in the latter goes between the subject and the verb to be. That is because when using passive voice, you don't mind about the doer but the action itself.

Let's remember the structure you use to make a question using the **passive voice** of **modal verbs**.

(WH) + Modal + Subject + be + verb (past participle) + complement + ?

Examples:

What can be done to prevent supplier to walk away from their responsibilities?

Should the supplier be held accountable for all the contractual responsibilities?

Remember, that the passive voice is used in formal contexts, and it is used to give a special importance on the object of the sentence.

Examples

- *Can suppliers be held accountable for timeframes?*
- *What else should be done?*
- *Should refunds be made if the solution does not work as planned?*

Modal verbs in Passive Voice to Answer Questions

The **passive voice** is normally used when we don't know who the agent of an action is or it is not important; therefore, all the importance is given to the object of the sentence.

We use the modals **can be** or **could be + past participle** to talk about present and past ability or possibility in the **passive voice**:

*A timeframe **can be negotiated** with the supplier.*

We use **must be / have to be / ought to be / should be + past participle** forms to talk about necessity and advisability in the passive voice:

*Something **must be done** to make that supplier comply with the timeframe.*

The following chart explains in detail the structure one should follow to make a sentence using the passive voice:





Learning Points

Object	Modal verb	be	Main verb (past participle)	Complement (Agent)
timeframes	Should	be	respected	by all the parties in a contract.

Examples

- *A defined project plan with key milestones has to be included for the supplier to meet.*
- *It is really important to clarify the consequences that may be in case the supplier doesn't comply with their part on time.*
- *The excuse that can be given by them is that timeframes are dependent on the customer doing their part, which results in the supplier trying to find an 'out' for delays caused by the customer.*
- *As it happens a lot, the best thing you can do is to have a docket devoted to the tasks that may be performed by either you or the supplier.*